Residential Treatment Facility
Inspection Report

Department of Health
P.O. Box 47874, Olympia, WA 98504-7874
TEL: 360-236-4732

January 17, 2023

Tamarack Center, 2901 W Elliott Dr, Spokane, WA. 99224-5808	Tim Davis
Agency Name and Address	Administrator

ONGOING - ROUTINE	01/11/2023	AAU0303
Inspection Type	Inspection Onsite Dates	Inspector
X2022-672	RTF.FS.00001068	Mental Health Services
Inspection Number	License Number	RTF Service Types

Please note that the deficiencies/violations/observations noted in this report are not all-inclusive, but rather were deficiencies/violations/observations that were observed or discovered during the on-site inspection.

Deficiency Number and Rule Reference	Observation Findings	Plan of Correction
0095 Licensing WAC 246-337-010(8)(a) An applicant may not open or operate an RTF until all requirements for licensure set forth in this section are met and the department has issued an initial, renewed, or amended RTF license listing the service type(s) approved to be provided in the RTF. (8) The licensee shall: (a) Maintain and post a current RTF license in a conspicuous place on the premises.	The Washington Administrative Code standard is not met as evidenced by: Based on observation and interview, Tamarack Center failed to post current RTF license in a conspicuous place on the premises. Failure to post license may cause individuals to not know what type of treatment or services they are receiving from a licensed Residential Treatment Facility. Findings included: 1. In an onsite survey on 1/11/2023 at 10:30 am, the licenses posted in entryway were expired. 2. In an interview on 1/11/2023 at 12:30 pm with Staff C, Director of Ancillary Services, he stated they had current licenses but just had not replaced the expired ones.	
0620 Management of human resources WAC 246-337-050(5)(a) (5) The licensee must	The Washington Administrative Code standard is not met as evidenced by:	

document that staff receive the following training as applicable: (a) Initial orientation and ongoing training to address the safety and health care needs of the residents served for all staff.	Based on personnel record review and interview, Tamarack Center failed to document training for initial orientation and ongoing training to address the safety and health care needs of residents served for all staff in 3 of 5(#2, #4, #5) personnel records reviewed. Failure to orient staff to resident needs can result in harm for residents and staff by not having information to serve residents appropriately. Finding included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of orientation training in personnel files (#2, #4, #5). 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are doing this training but it unable to locate documentation at this time.	
0625 Management of human resources WAC 246-337-050(5)(b) (5) The licensee must document that staff receive the following training as applicable: (b) Bloodborne pathogen training inclusive of HIV/AIDS training for staff involved in direct resident care or potential for having contact with blood or body fluids.	The Washington Administrative Code standard is not met as evidenced by: Based on personnel record review and interview, Tamarack Center failed to document training for Bloodborne pathogen in 2 out of 5(#4, #5) personnel files reviewed. Failure to train staff for required trainings could exposed staff and patients to blood or bodily fluids. Findings included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of blood borne pathogen training in personnel files (#4, #5). 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are doing this training but it unable to locate documentation at this time.	
0780 Management of human resources WAC 246-337-050(7)(d) (7) The licensee shall have written documentation for each staff member including: (d) Current signed job description.	The Washington Administrative Code standard is not met as evidenced by: Based on personnel record review and interview, Tamarack Center failed to have written documentation for each staff member including: 10(d) Current signed job description in 1	

	of 5 (#5) personnel records reviewed. Failure to have job descriptions for an employee places agency at risk for employee to not know what duties they are expected to perform. Finding included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of blood borne pathogen training in personnel file #5. 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are doing this training but it unable to locate documentation at this time.	
0785 Management of human resources WAC 246-337-050(7)(e) (7) The licensee shall have written documentation for each staff member including: (e) Criminal history disclosure statement and results of a background check, according to WAC 246-337-055, completed within the previous three months of hire date and annually thereafter.	The Washington Administrative Code is not met as evidenced by: Based on interview and record review, Tamarack Center failed to have written documentation for each staff member including a criminal history disclosure consistent with RCW 43.43.842 (1)(b) in 5 of 5 (#1, #2, #3, #4, #5) personnel records reviewed. Failure to have criminal disclosure statements from employees can place agency at risk for providing substandard care. Finding included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of a criminal disclosure in personnel files #1, #2, #3, #4, and #5. 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are part of process but was unable to locate documentation at this time.	
0790 Management of human resources WAC 246-337-050(7)(f) (7) The licensee shall have written documentation for each staff member including: (f) Current license, certification, or registration, if applicable.	The Washington Administrative Code standard is not met as evidenced by: Based on interview and record review, Tamarack Center failed to have current licenses for 2 of 6 (#4, #5) personnel records reviewed.	

	Failure to ensure professional staff is currently licensed places agency at risk to provide unlicensed care. Findings included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of current license in personnel files #4 and #5. 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are doing this but was unable to locate documentation at this time.	
0810 Management of human resources WAC 246-337-050(7)(j) (7) The licensee shall have written documentation for each staff member including: (j) Initial and ongoing tuberculosis screening according to the facility risk assessment and tuberculosis written plan according to WAC 246-337-060.	The Washington Administrative Code standard is not met as evidenced by: Based on interview and record review, Tamarack Center failed to have an initial Tuberculosis (TB) screening in 3 of 5(#2, #3, #5) personnel records reviewed. Failure to ensure professional staff is screened for Tuberculosis places agency at risk to spread an infectious disease within facility. Findings included: 1. In a review of personnel records on 01/11/2023 at 12:00 pm, there was no documentation of TB screening in personnel files #2, #3, and #5. 2. In an interview on 01/11/2023 with Staff B, Human Resource Director, at 12:00pm, she said that they are doing this but was unable to locate documentation at this time.	
1060 Resident care services WAC 246-337-080 (2)(b) (2) The licensee must:(b) Conduct or accept a current health care screening of each resident upon admission including a tuberculosis risk assessment and symptom screening;	The Washington Administrative Code standard is not met as evidenced by: Based on record review and interview, Tamarack Center failed to have a Tuberculosis (TB) risk assessment for residents upon admission in 1 of 3 resident records (#2) reviewed. Failure to screen residents for Tuberculosis could place residents at risk to be exposed to a communicable disease within facility.	

	Findings included: 1. In a review of resident records on 1/11/23 at 1:30 pm, there was not a TB screen present in resident record #2. 2. In an interview on 01/11/2023 at 1:30pm with Staff C, Director of Ancillary Services, stated that they do TB screenings sometimes the form may not be scanned correctly into the record.	
2145 Medication management WAC 246-337-105(5)(b) The licensee is responsible for implementing policies and procedures for the control and appropriate use of all drugs within the RTF in accordance with all applicable state and federal regulations. The policies and procedures to implement this section must be developed, approved, and reviewed by a health care prescriber and the RTF administrator, and must be consistent with this chapter. (5) Documentation. All medications administered, observed being self-administered, or involuntarily administered must be documented on the medication administration record, including: (b) Parameters of use.	The Washington Administrative Code standard is not met as evidenced by: Based on patient record review and interview, Tamarack Center failed to document in the medication administration record the parameters of use of all medications in 3 of 3 (#1, #2, #3) patient records reviewed. Failure to document required elements in patient records could cause patients to receive substandard care. Findings included: 1. In a patient record review on 01/11/2023 at 1:30pm, the Medication Administration Record (MAR) did not have parameters of drug use for all medications for each patient record reviewed (#1, #2, #3). 2. In an interview on 01/11/2023 at 1:30pm with Staff C, Director of Ancillary Services, stated he observed in the MAR some of the medications had the parameters of use but not for all of them.	
2440 Food and nutrition services WAC 246-337-111(2) Meals must meet resident nutritional needs, and are stored, prepared and served in accordance with chapter 246-215 WAC. The licensee shall: (2) Post current food handlers permits in the kitchen.	The Washington Administrative Code standard is not met as evidenced by: Based on observation, Tamarack Center failed to post current food handlers permits in the kitchen. Failure to have current and/or up-to-date food worker cards may result in unqualified/unauthorized food worker(s) preparing/handling food. Findings included: 1. In an observation on 01/11/2023 at 11:15am, the facility did not have current kitchen workers food handlers card posted in kitchen.	

2495 Food and nutrition services WAC 246-337-111(13) Meals must meet resident nutritional needs, and are stored, prepared and served in accordance with chapter 246-215 WAC. The licensee shall: (13) Use commercial appliances if the kitchen provides meals for more than sixteen residents. A licensed RTF with sixteen or fewer residents may use domestic or home-type kitchen appliances. Domestic and home-type equipment must meet sanitation requirements of chapter 246-215 WAC.	The Washington Administrative Code standard is not met as evidenced by: Based on observation and interview, Tamarack Center failed to have a working commercial Warewashing equipment present in their facility because the kitchen provides meals for sixteen residents. Failure to not have working equipment present in facility can cause harm to residents by not properly washing or sanitizing dishes for residents. Finding included: 1. In an observation on 01/11/2023 at 11:15 am, the kitchen sinks did not have a commercial dishwasher present or working. 2. In an interview on 01/11/2023 with Staff A, Food Employee, stated the dishwasher had broken a few months ago but the facility was in process of getting a new one soon.	
U2405 Utensils, temperature measuring devices, and testing devices-Sanitizing solutions, testing devices (FDA Food Code 4-302-14) WAC 246-215-04345 A test kit or other device that accurately measures the concentration in mg/L of SANITIZING solutions must be provided.	The Washington Administrative Code standard is not met as evidenced by: Based on observation and interview, Tamarack Center failed to provide a test kit or other device to accurately measure the concentration of sanitizing solutions used in the kitchen and dining room. Failure to properly sanitize food and nonfood-contact surfaces can result in adverse impacts to residents and staff. Findings included: 1. In an observation on 01/11/2023 at 11:15am, the facility staff did not have chlorine and/or quaternary ammonia test strips or a test kit available for measuring the concentration of sanitizing solutions. 2. In an interview 1/11/2023 at 11:15 am, Staff A, Food Employee, stated that they did not have a test kit or other device to measure the concentration of sanitizing solutions.	

U2805 Objective-Food contact surfaces and utensils (FDA Food Code 4-701.10) WAC 246-215-04700 EQUIPMENT, FOOD-CONTACT SURFACES, and UTENSILS must be SANITIZED.	The Washington Administrative Code standard is not met as evidenced by: Based on observation, Tamarack Center failed to provide a means to sanitize food contact surfaces and utensils. Failure to sanitize food contact surfaces and utensils may result in a foodborne illness and/or adverse outcomes for staff and residents. Findings included: 1. In an observation on 01/11/2023 at 11:15am, the facility did not have any sanitizing means. 2. In an interview 1/11/2023 at 11:15 am, Staff A, Food Employee, stated that they did not have a test kit or other device to measure the concentration of sanitizing solutions.	

Introduction
We require that you submit a plan of correction for each deficiency listed on the inspection report form. Your plan of correction must be submitted to the DOH within ten business days of receipt of the list of deficiencies.

You are required to respond to the Inspection Report with Noted Deficiencies by submitting a plan of correction (POC). Be sure to refer to the deficiency number. If you include exhibits, identify them and refer to them as such in your POC.

Descriptive Content
Your plan of correction must provide a step-by-step description of the methods to correct each deficient practice to prevent recurrence and provide information that ensures the intent of the regulation is met.

An acceptable plan of correction must contain the following elements:
- The plan of correcting the specific deficiency;
- The procedure for implementing the acceptable plan of correction for the specific deficiency cited;
- The monitoring procedure to ensure that the plan of correction is effective and that specific deficiency cited remains corrected and/or in compliance with the regulatory requirements;
- The title of the person responsible for implementing the acceptable plan of correction.

Simply stating that a deficiency has been "corrected" is not acceptable. If a deficiency has already been corrected, the plan of correction must include the following:
- How the deficiency was corrected,

- The completion date (date the correction was accomplished),
- How the plan of correction will prevent possible recurrence of the deficiency.

Completion Dates
The POC must include a completion date that is realistic and coinciding with the amount of time your facility will need to correct the deficiency. Direct care issues must be corrected immediately and monitored appropriately. Some deficiencies may require a staged plan to accomplish total correction. Deficiencies that require bids, remodeling, replacement of equipment, etc., may need more time to accomplish correction; the target completion date, however, should be within a reasonable and mutually agreeable time-frame.

Continued Monitoring
Each plan of correction must indicate the appropriate person, either by position or title, who will be responsible for monitoring the correction of the deficiency to prevent recurrence.
Checklist:
- Before submitting your plan of correction, please use the checklist below to prevent delays.
- Have you provided a plan of correction for each deficiency listed?
- Does each plan of correction show a completion date of when the deficiency will be corrected?
- Is each plan descriptive as to how the correction will be accomplished?
- Have you indicated what staff position will monitor the correction of each deficiency?
- If you included any attachments, have they been identified with the corresponding deficiency number or identified with the page number to which they are associated?

Your plan of correction will be returned to you for proper completion if not filled out according to these guidelines.

Note: Failure to submit an acceptable plan of correction may result in enforcement action.

Approval of POC
Your submitted POC will be reviewed for adequacy by DOH. If your POC does not adequately address the deficiencies in your inspection report you will be sent a letter detailing why your POC was not accepted.

Questions?
Please review the cited regulation first. If you need clarification, or have questions about deficiencies you must contact the inspector who conducted the onsite inspection, or you may contact the supervisor.

Department of Health – Written Plan of Correction – January, 2023

The following items will list the regulation number; identify how the deficiency was corrected, who is responsible for the correction, when the correction will be completed, and how we will assure the deficiency has been successfully corrected.

Regulation Number – 0095 – Licensing

How corrected – Current license was posted in the front of the office building

Who is responsible – Tim Davis

Completed – 1/18/2023

Successfully completed – Yes, posted

Regulation Number – 0620 – Management of Human Resources

How corrected – Tamarack has designated Sarah Kopp, Therapy Director to design, implement, and follow up on a comprehensive on boarding orientation program for all new employees. This program will apply to all new employees and will be conducted by several senior employees, including the Board of Directors. This program has been previously designed but was not implemented across all employees and the documentation of completion has been inconsistent.

Who is responsible – Sarah Kopp

Completed – No –no new employees have been hired in the last three months. Current employees that have training deficiencies have been identified and have individually addressed.

Successfully completed – Tim Davis and Stephanie Weitman will monitor the on boarding process. Tim will see who is initially scheduled for what part of their orientation. Stephanie will monitor personnel files to see they are complete.

Regulation Number – 0625 – Management of Human Resources

How corrected – All employee personnel files have been reviewed to see that current Blood Borne pathogen training has been completed. Those files that are incomplete and notified the training needs to be completed. The training is a computer-based training with a pre and posttest. Employees are given two weeks to complete the training.

Who is responsible – Initially, each employees immediate supervisor. That list is Tim Davis, Mark Holmes, Sarah Kopp, and Tammy Carruthers.

Stephanie Weitman, business assistant will compile the test and report any employee who has not completed the training.

Completed – Five employees have not completed the training.

Successfully completed – Stephanie will monitor personnel files, with a check list, to ensure all training are complete. She will do this twice a year.

Regulation Number – 0780 – Management of Human Resources

How corrected – All personnel files will be reviewed to ensure current job descriptions are placed in each file. Our annual performance evaluation system uses the job description as a document to measure performance.

Who is responsible – Each employees immediate supervisor (see above list).

Stephanie Weitman will do a comprehensive review of each file to ensure all documents are present.

Completed- All personnel files have a copy of the job description

Successfully completed – After hire, Stephanie will ensure all new employees have a job description in their file.

Regulation Number- 0785 – Management of Human Resources

How corrected – All employees have had a criminal background check completed and placed in their file.

Who is responsible – Stephanie Weitman, business associate will conduct a criminal background check on each new employee and place it in their file.

Completed – Yes, all employees and volunteers have had a criminal background check and it is placed in their file.

Successfully completed – Stephanie will do twice a year audits to ensure all files are complete.

Regulation Number – 0790 – Management of Human Resources

How Corrected – All licensed employees are currently licensed. This has been verified by the State of Washington web site. Current licenses are then placed in the personnel file.

Who is responsible – Immediate supervisors are responsible to see that their employees are currently licensed (see above list).

Stephanie will send out a reminder to all licensed employees two months before expiration that their license is due.

Completed – Yes, all licensed employees are currently licensed.

Successful completion – Stephanie will monitor each file monthly to ensure current licensure is maintained.

Regulation Number – 0810 – Management of Human Resources

How corrected – All staff have been reviewed to ensure current TB testing. Those staff that have not been recently tested are scheduled for a test. Documentation will be placed in the personnel file.

Who is responsible –Tammy Carruthers, Director of Nursing

Completed - No some employees need current TB test

Successful completion – Tammy will ensure all employees are tested and then will test all new employees.

Stephanie will send out monthly reminders for people who need to be tested. Stephanie will then audit personnel files to ensure documentation is in the files.

Regulation Number – 1060 – Resident Care Services

How corrected – All newly admitted resident will have a TB test upon admission.

Who is responsible – Tammy Carruthers, Director of Nursing

Completed – Yes, all residents have current testing

Successful completion – Tammy will monitor the resident's record to ensure documentation of TB teat is in the record. She will do this for each new admission.

Regulation Number – 2145 – Medication Management

How Corrected – Medical Director, Dr. Lavy, was informed, that "mood" was insufficient as a parameter for drug use. He immediately started using a more descriptive description for the parameters for drug use.

Who is responsible – Dr. Lavy

Completed – Yes. He changed his parameters on the day he was notified and has remained consistent with that pattern.

Successful completion – Tammy Carruthers, Director of Nursing will review and ensure all documentation is correct.

Regulation Number – 2440 – Food and Nutrition Services

How Corrected – Current food handlers cards are posted in the kitchen.

Who is responsible – Mark Holmes, Ancillary Services Director

Completed – Yes, they are posted

Successful Completion – Mark will ensure they are posted. If a new person is hired, he will ensure their card is posted as well.

Regulation Number – 2495 – Food and Nutrition Services

How Corrected – A new dishwasher was installed on 1/26/23. This is a new, commercial dishwasher.

Who is responsible – Tracy Evans, Facility Director

Tim Davis, Executive Director

Completed – Yes – on 1/26/23

Successful Completion – Tamarack kitchen staff will monitor the equipment daily and inform Tracy if something is not working and needs repair.

Regulation Number – U2405 – Utensils, temperature, measuring devices, and testing devices

How Corrected – Test strips were purchased and now available in the kitchen.

Who is responsible – Mark Holmes, Ancillary Director

Completed – Yes, completed on 1/11/23.

Successful Completion – Tamarack kitchen staff will use the test strips daily. They will inform Mark when they are running low so he can purchase new strips.

Regulation Number – U2805 – Objective Food contact surface and utensils

How Corrected – Test strips were purchased to measure the cleaning solution used to clean surfaces. The strips will be used each time the solution is used.

Who is responsible – Mark Holmes, Ancillary Director

Completed – Yes, strips are used daily with the cleaning solution.

Successful Completion – Tamarack kitchen staff will clean the surfaces several times a day. They will use the testing stripes to ensure safety. When running low on stripes, they will contact Mark to buy more stripes.

STATE OF WASHINGTON
DEPARTMENT OF HEALTH
PO Box 47874 • Olympia, Washington 98504-7874

February 15, 2023

Tim Davis
Tamarack Center Inc
2901 W Elliot Dr
Spokane, WA 99224-5808

Subject: Inspection Number X2022-672

Dear Mr. Davis,

The Washington State Department of Health conducted an inspection of Tamarack Center Inc, 2901 W Elliot Dr., Spokane, WA 99224-5808. Your state licensing on-site inspection was completed on 01/11/2023. The Plan of Correction that was submitted on 01/26/2023 was approved on 02/15/2023. No further action is required.

I sincerely appreciate your cooperation and hard work during the inspection process and look forward to working with you again in the future.

Sincerely,

Amy Umberger, LICSW
Behavioral Health Reviewer
Office of Health System Oversight
Health Systems Quality Assurance
Washington State Department of Health